DEPARTMENT OF THE INTERIOR

Bureau of Land Management

43 CFR Public Land Order 5671

[OR 17492]

Oregon; Powersite Restoration No. 717; Partial Revocation of Powersite Reserve No. 108

AGENCY: Bureau of Land Management (Interior).

ACTION: Final rule.

SUMMARY: This order will partially revoke Powersite Reserve No. 108 as to certain lands lying along the Walla Walla River in northeastern Oregon. The lands will be restored to operation of the public land laws.

EFFECTIVE DATE: August 24, 1979.

FOR FURTHER INFORMATION CONTACT: Louis B. Bellesi, 202–343–8731.

By virtue of the authority contained in section 204 of the Act of October 21, 1976, 90 Stat. 2751; 43 U.S.C. 1714, and pursuant to the determination of the Federal Power Commission (now the Federal Energy Regulatory Commission) in DA–544–Oregon, it is ordered as follows:

1. The Executive Order of July 2, 1910, creating Powersite Reserve No. 108 is hereby revoked so far as it affects the following described land:

Williamette Meridian

Public Land:

T. 4 N., R. 37 E.,
Sec. 9, NE¼SE¼;
Sec. 10, lots 1 and 4 and SE¼NW¼;
Sec. 11, lot 7;
Sec. 12, SE¼NE¼;
Sec. 14, lots 1 and 2, W½NE¼ and NW¼;
Sec. 15, N½NE¼.
Containing 645.80 acres.

Nonpublic Land:

T. 4 N., R. 37 E.,
Sec. 12, lots 1, 2, 3, and 4, NE¼SW¼ and N½SE¼;
Sec. 13, N½NW¼ and SW¼NW¼.
Containing 399.76 acres.

The areas described, including both public and nonpublic land, aggregates 1,045.56 acres in Baker County.

2. The State of Oregon has waived its right to select lands for highway rights-of-ways or material sites as provided by the Federal Power Act of June 10, 1920, 16 U.S.C. 818.

3. At 10 a.m., on August 24, 1979, the public lands described above shall be open to operation of the public land laws generally, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m., on August 24, 1979, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

4. The public lands described above have been and continue to be open to applications and offers under the mineral leasing laws, and to location under the United States mining laws.

Inquiries concerning the lands should be addressed to the Chief, Branch of Land and Minerals Operations, Bureau of Land Management, P.O. Box 2965, Portland, Oregon 97208.

July 19, 1979.

Guy R. Martin,

Assistant Secretary of the Interior.

[FR Doc. 79–23217 Filed 7–26–79; 8:45 am]

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FEDERAL COMMUNICATIONS COMMISSION

47 CFR Part 73

[BC Docket No. 79–69; RM–3257]

FM Broadcast Station in Beloit, Kansas; Changes Made in Table of Assignments

AGENCY: Federal Communications Commission.

ACTION: Report and Order.

SUMMARY: Action taken herein assigns a first Class A FM channel to Beloit, Kansas, in response to a petition filed by Robert D. Zellmer. The channel can be used to bring a first fulltime local radio service to the community.

EFFECTIVE DATE: August 31, 1979.

ADDRESSES: Federal Communications Commission, Washington, D.C..20554.

FOR FURTHER INFORMATION CONTACT: Mildred B. Nesterak, Broadcast Bureau, (202) 632–7792.

SUPPLEMENTARY INFORMATION: In the matter of amendment of § 73.202(b), Table of Assignments, FM Broadcast Stations. (Beloit, Kansas); report and order (Proceeding Terminated).

Adopted: July 18, 1979.

Released: July 25, 1979.

By the Chief, Broadcast Bureau:

1. The Commission has before it the *Notice of Proposed Rule Making*, adopted April 2, 1979, 44 FR 21045, in the above-entitled proceeding, instituted in response to a petition filed by Robert D. Zellmer ("petitioner"). Petitioner proposed the assignment of Channel 288A to Beloit, Kansas, as that community's first FM assignment. No oppositions to the proposal were received.

2. Beloit (pop. 4,121), seat of Mitchell County (pop. 8,010),[1] is located 97 kilometers (60 miles) northwest of Salinas, Kansas. There is no local aural broadcast service in Beloit or elsewhere in Mitchell County. Channel 288A can be assigned to that community in conformity with the minimum distance separation requirements. Petitioner reaffirms his intention to file for the channel, if assigned.

3. In support of his proposal, petitioner submitted information with respect to Beloit which is persuasive as to its need for a first FM channel assignment.

4. We believe that the public interest would be served by the assignment of Channel 288A to Beloit, Kansas. An interest has been shown for its use, and such an assignment would provide Beloit and Mitchell County with a first local aural broadcast service.

5. Accordingly, *it is ordered*, That effective August 31, 1979, the FM Table of Assignments, Section 73.202(b) of the Commission's Rules, is amended with respect to the community listed below:

City	Channel No.
Beloit, Kansas	288A

6. Authority for the adoption of the amendment is contained in Sections 4(i), 5(d)(1), 303(g) and (r) and 307(b) of the Communications Act of 1934, as amended, and § 0.281 of the Commission's Rules.

7. For further information concerning this proceeding, contact Mildred B. Nesterak, Broadcast Bureau, (202) 632–7792.

8. *It is further ordered*, That this proceeding is terminated.

(Secs. 4, 303, 307, 48 Stat., as amended, 1066, 1082, 1083; 47 U.S.C. 154, 303, 307.)

Federal Communications Commission.

Richard J. Shiben,

Chief, Broadcast Bureau.

[FR Doc. 79–23148 Filed 7–26–79; 8:45 am]

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47 CFR Part 73

[BC Docket No. 78–378; RM–3189]

FM Broadcast Station in Hadley, New York; Changes Made in Table of Assignments

AGENCY: Federal Communications Commission.

ACTION: Report and Order

SUMMARY: Action taken herein assigns FM Channel 228A to Hadley, New York,

[1] Population figures are taken from the 1970 U.S. Census.